

Opinion of the Court

elsewhere. He also would pick up Canada-bound guests throughout the State and drive them north to his property along the border. Either way, Boule would charge \$100–\$150 per hour for his shuttle service and require guests to pay for a night of lodging even if they never intended to stay at the Inn. Meanwhile, Boule would inform federal law enforcement if he was scheduled to lodge or transport persons of interest. In short order, Border Patrol agents would arrive to arrest the guests, often within a few blocks of the Inn. Boule would decline to offer his erstwhile customers a refund. In his view, this practice was “nothing any different than [the] normal policies of any hotel/motel.” *Id.*, at 120.¹

In light of Boule’s business model, local Border Patrol agents, including petitioner Erik Egbert, were well acquainted with Smuggler’s Inn and the criminal activity that attended it. On March 20, 2014, Boule informed Agent Egbert that a Turkish national, arriving in Seattle by way of New York, had scheduled transportation to Smuggler’s Inn later that day. Agent Egbert grew suspicious, as he could think of “no legitimate reason a person would travel from Turkey to stay at a rundown bed-and-breakfast on the border in Blaine.” *Id.*, at 104. The photograph below displays the amenities for which Boule’s Turkish guest would have traveled more than 7,500 miles. See *id.*, at 102.

¹Notwithstanding his defense of the Inn’s policies, Boule was recently convicted in Canadian court for engaging in human trafficking. In December 2021, he pleaded guilty to trafficking 11 Afghanis and Syrians into Canada. He billed each foreign national between \$200 and \$700 for the trip. See *Regina v. Boule*, 2021 BCSC 2561, ¶¶7–11.